

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406527	PATERSON VS MONRO, INC.	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendants Monroe, Inc. and Carlos Aguirre

Non-Opposing party: Plaintiff Brittany Paterson

This is a negligence action arising out of a motor vehicle accident. On November 15, 2024, Plaintiff Brittany Paterson (“Plaintiff”) filed a Complaint against Defendants Monroe, Inc. (“Monro”) and Carlos Aguirre (“Aguirre”) (together “Defendants”) for negligence and punitive damages. In the Complaint, Plaintiff alleges that she had her vehicle serviced at Tire Choice Auto Service Centers (“Tire Choice”), owned by Monro, and while there, Defendants negligently and carelessly serviced and repaired her vehicle such that the brake line was not reattached to the brakes after the service. (Complaint at ¶ GN-1.) As a result, when Plaintiff was driving home on the freeway after picking up her vehicle from Tire Choice, her brakes did not work, forcing her to use her emergency brake and causing injuries and damages. (*Id.*)

Defendants now move for summary judgment, arguing that Plaintiff has no evidence that Defendants were negligent in servicing her vehicle or caused her injuries, and no evidence that Aguirre acted with malice, fraud, or oppression.

EVIDENCE SUPPORTING MOTION

Decl. of Shane M. Hoover (“Hoover Decl.”), which attaches:

- Complaint;
- Defendants’ service records for Plaintiff’s vehicle;
- Decl. of Carlos Aguirre (“Aguirre Decl.”);
- The pertinent portions of the deposition of Brittany Paterson (“Paterson Deposition”);
- Excerpts from Aguirre’s responses to Plaintiff’s SPROGs;
- Excerpts from Monro’s responses to Plaintiff’s SPROGs;
- Excerpts from Plaintiff’s responses to Monro’s SPROGs;
- Plaintiff’s document production;
- Additional service records; and
- Decl. of Vincent Lavis (“Lavis Decl.”)

LEGAL ANALYSIS

A. Standard

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

B. The Motion is Granted

Plaintiff asserts one cause of action for negligence. To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Without a duty of care owed by the alleged wrongdoer to the person injured, no negligence is established. (*Jean Hamilton v. Gage Bowl, Inc.* (1992) 6 Cal.App.4th 1706, 1711.) A moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to sustain one or more elements of the cause of action pleaded, including causation. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756; See also, *Aguilar, supra*, 25 Cal.4th at 855.)

In the present case, Defendants present evidence of the following: Plaintiff’s vehicle was towed to Tire Choice on December 4, 2023 for repairs to extensive damage to the driver’s side and a cracked front strut; upon inspection of the vehicle, Defendants observed that the front driver’s side brake line was outside of the mounting bracket on the front strut and the brake shield was bent, but there was no visible damage to the

brake line; Defendants made all repairs to the vehicle and thereafter properly secured the driver's side front brake line to the appropriate bracket such that the brake line was not in contact with the tire; Defendants did not remove, detach, or manipulate the brake line other than to secure it into the mounting bracket; before returning the vehicle to Plaintiff, Acuirre test drove the vehicle for three miles, reaching highway speeds of 65 mph, and had no issues with the brakes; while Plaintiff claims the vehicle was leaking brake fluid when she picked it up from Tire Choice, she testified in deposition that she did not observe any leaking fluid; Plaintiff made at least one stop at a traffic light after picking up her vehicle before reaching highway speeds, and the brakes were working properly at that time; and Plaintiff is unaware of any Tire Choice employee having knowledge of any problem with her brakes when she picked up the vehicle. (UMF ## 1-6, 12, 14, 16-17.) This evidence is sufficient to show that Plaintiff cannot establish causation for the incident.

The burden then shifts to Plaintiff to establish a triable issue of material fact regarding causation. "[P]roof of causation cannot be based on mere speculation, conjecture and inferences drawn from other inferences to reach a conclusion unsupported by any real evidence." (*Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752; see also, *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205-06 (*quoting* Prosser & Keaton, Torts (5th Ed. 1984), § 41) ["The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant"].)

As Plaintiff did not oppose the motion, she fails to present the necessary evidence to create a triable issue of material fact as to causation. Accordingly, the motion is granted.

The motion for summary judgment is Granted. The Court enters summary judgment in favor of Defendants.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500474	ANDERSON VS BURKS	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling:

This motion is unopposed. Accordingly, the motion for leave to file a cross complaint is granted. Moving party is to give notice of ruling within 10 days of this order. Moving party is ordered to file its cross complaint within 10 days of this order.